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Newsom wants $25M fund to potentially fight Trump policies

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Gov. Gavin Newsom wants to create a $25 million fund to prepare the Department of Justice and other agencies for potential litigation against President-elect Donald Trump's policies.

The special fund would "help safeguard critical funding for disaster relief, health care, and other vital services," according to a press release from the governor's office.

Newsom called for a special legislative session, which begins Monday, to prepare California to "defend its values" from the incoming administration. Newsom said lawmakers will soon introduce related legislation, which he expects to sign into law by Jan. 25.

Newsom, a Democrat, has portrayed himself as both a liberal foil to the incoming president and a willing partner. In a statement, he pledged to work with the White House "to succeed in serving all Americans."

"But when there is overreach, when lives are threatened, when rights and freedoms are targeted, we will take action," Newsom said. "And that is exactly what this special session is about - setting this state up for success, regardless of who is in the White House."

He told reporters Monday that conflict between California and the White House was "a familiar theme" dating back decades to past presidents like George H. W. Bush and Ronald Reagan. Trump most recently threatened to withhold federal funds for wildfire victims, a common refrain during his previous administration. Trump did not withhold the money.

"I think that's pretty sobering, and so I think it requires us to be diligent, to focus on what happened in the past," Newsom said, "But to (also) prepare for Trump 2.0, where his rhetoric is not only heightened, but his call for retribution, revenge, is pretty clear. Anyone who's not paying attention, I think is doing so at their own peril."

Assembly Republican leader James Gallagher dismissed the special session as a "total posture."

"I mean, Gavin Newsom wants to run for president. That's what this is about," the Yuba City Republican said. "It's 'I want to fight Trump. I want to be the progressive darling.'"

The litigation fund announced Monday is less than the $42 million former Attorney General Xavier Becerra spent during his term, when he sued the Trump administration more than 120 times.

"I think the $25 million, should it be approved, is an excellent start," said Attorney General Rob Bonta, adding that the legislature could approve further funding if necessary.

Newsom pointed towards several instances in which California received "tangible financial benefits" after suing the White House during Trump's first term.

In one case, California recouped nearly $28 million after Becerra sued Trump when he withheld public safety funds from municipalities that wouldn't cooperate with federal immigration officials.

While the special session began Monday - the same day lawmakers were sworn in for their regular session - the Legislature is not expected to pass Newsom's proposal until early next year, according to aides to legislative

leaders

Lawmakers want to approve the DOJ funding before Trump's inauguration on Jan. 20.

Assemblymember Jesse Gabriel, who chairs the powerful Assembly Budget Committee, plans to introduce two special session bills: One with the $25 million and a second to "immediately" send the Justice Department $500,000 for "initial case preparation."

"We know from President-elect Trump's statements - and from the more than 120 lawsuits that California filed during the first Trump Administration - that we must be prepared to defend ourselves," Gabriel said. "We're not going to be caught flat-footed.

The Encino Democrat said while lawmakers "always hope to collaborate with our federal partners, California will be ready to vigorously defend our interests and values from any unlawful action by the incoming Trump Administration."

Freshman Assemblymember Carl DeMaio, R-San Diego, will introduce his own special session proposal to level penalties against Newsom and lawmakers who pass bills that are ruled unconstitutional.

The bill, which will be called the "Punish Unconstitutional Actions Act of 2025" will slash by 25% the state-paid compensation of the governor who signs and any lawmaker who votes in favor of legislation that is later found to be unconstitutional in federal court.

"The real threat to democracy and civil rights is Gavin Newsom's political ambition, his repeated intentional violation of citizens' constitutional rights, and gross negligence in failing to address real problems facing Californians," DeMaio said in a statement.

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